

23STCV31774 23STCV31774

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-06-30

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TENTATIVE

RULING

DEPARTMENT

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APPLICATION

Admitted Pro Hac Vice

APPLICANT

Curtis Greene

Curtis

Greene of Barnes & Thornburg, LLP, applies to be admitted pro hac vice as counsel for Cross-Defendants Quanex Building Products Corporation and Quanex IG Systems, Inc. The application is unopposed.

ANALYSIS

California Rules of Court rule 9.40

provides that an attorney in good standing in another jurisdiction may apply to appear as counsel pro hac vice in the State of California by filing a verified application together with proof of service by mail of a copy of the application and notice of hearing on all parties who have appeared in the case and on the State Bar of California at its San Francisco office, with payment of the application fee, so long as that attorney is not a resident of the State of California, and is not regularly engaged in substantial business, professional, or other activities in the State of California. (Cal. Rules of Court, rule 9.40.)

The application must state: (1) the applicant's residence and office addresses; (2) the courts to which the applicant has been admitted to practice and the dates of admission; (3) that the applicant is a member of good standing in those courts; (4) that the applicant is not currently suspended or disbarred in any court; (5) the title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and (6) the name, address, and telephone number of the active member of the State Bar of California who is attorney of record in the local action. (Cal. Rules of Court, rule 9.40(d).)

The Verified Application provides most this information, and indicates that the requisite application fee has been paid.

However, instead of indicating the title of each court and cause in which the applicant has filed an application to appear as pro hac vice in this state in the preceding two years, the date of each application, and whether or not such application as granted, Counsel simply indicates the cases in which he has been admitted to practice in California in the preceding two years. That does not satisfy the requirement.

The proof of service indicates counsel for all partes were served electronically. However, there is no proof of service demonstrating service on the State Bar by mail at its San Francisco office, as required by California Rules of Court, Rule 9.40(c), which

provides: "A person desiring to appear as counsel pro hac vice in a superior court must file with the court a verified application together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application on all parties who have appeared in the cause and on the State Bar of California at its San Francisco office. The notice of hearing must be given at the time prescribed in Code of Civil Procedure section 1005 unless the court has prescribed a shorter period." (Cal. Rules of Court, rule 9.40(c)(1), emphasis added.)

CONCLUSION

AND ORDER

The Court denies the application without prejudice as procedurally defective.

Counsel shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: June 30, 2026 _____/s_____

Michael E. Whitaker

Judge
of the Superior Court